

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Squad #10	CCRB Case #: 201609694	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 09/08/2016 3:30 PM, Thursday, 09/15/2016 12:00 AM	Location of Incident: Stuart Street entrance of Intermediate School 278	18 Mo. SOL 3/8/2018	Precinct: 61		
Date/Time CV Reported Mon, 11/21/2016 2:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/21/2016 2:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Schlitt	11229	952221	063 PCT
2. SGT George Taylor	2396	946312	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT George Taylor	Abuse: Sergeant George Taylor stopped § 87(2)(b) and § 87(2)(b)	A . Substantiated
B . POM Christophe Schlitt	Abuse: Police Officer Christophe Schlitt stopped § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . SGT George Taylor	Abuse: Sergeant George Taylor frisked § 87(2)(b)	C . Substantiated
D . POM Christophe Schlitt	Abuse: Police Officer Christophe Schlitt frisked § 87(2)(b)	D . Substantiated
E . SGT George Taylor	Abuse: Sergeant George Taylor searched § 87(2)(b) and § 87(2)(b)	E . Substantiated
F . POM Christophe Schlitt	Abuse: Police Officer Christophe Schlitt searched § 87(2)(b) and § 87(2)(b)	F . Substantiated

Case Summary

On November 21, 2016, § 87(2)(b) filed the following complaint with the CCRB on behalf of her son § 87(2)(b) and his friend § 87(2)(b). On September 8, 2016, at approximately 3:30 p.m., § 87(2)(b) and § 87(2)(b) were in the basketball courts of Marine Park in the vicinity of Junior High School 278 in Brooklyn. They were stopped by Sgt. George Taylor and PO Christopher Schlitt of the 63rd Precinct (**Allegations A and B**). § 87(2)(b) and § 87(2)(b) were frisked and searched by Sgt. Taylor and PO Schlitt (**Allegations C, D, E and F**). § 87(2)(b) and § 87(2)(b) were told that they were stopped because they resembled the suspects in a robbery of a pharmacy. § 87(2)(b) and § 87(2)(b) were released without a summons or an arrest.

There was no video of the incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint on behalf of her son, § 87(2)(b).
- An enquiry to the Office of the New York City Comptroller indicated that no notice of claim was filed for this incident (**Board Review 1**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint involving either § 87(2)(b) or § 87(2)(b) (**Board Review 2**).
- PO Schlitt has had only one other complaint involving one other allegation filed against him in his five year tenure at the NYPD. That allegation was not substantiated § 87(2)(g).
- This is the first complaint filed against Sgt. Taylor in his nine year tenure at the NYPD. He has since had CCRB complaint number 201704208 involving seven allegations filed against him. That complaint is awaiting board review with recommendations of substantiation on two allegations, an allegation regarding abuse of authority - summons and an allegation of abuse of authority – detainment.

Findings and Recommendations

Explanation of Subject Officer Identification

- Although PO Schlitt had no recollection of this incident, he generated Stop, Question and Frisk reports for the stop of § 87(2)(b) and § 87(2)(b) in which it was noted that § 87(2)(b) and § 87(2)(b) were stopped, frisked and searched. Sgt. Taylor admitted to stopping § 87(2)(b) and § 87(2)(b) and worked with PO Schlitt.
§ 87(2)(g)

Allegation A –Abuse of Authority: Sergeant George Taylor stopped § 87(2)(b) and § 87(2)(b)

Allegation B- Abuse of Authority: Police Officer Christophe Schlitt stopped § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: Sergeant George Taylor frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Christophe Schlitt frisked § 87(2)(b)

Allegation E – Abuse of Authority: Sergeant George Taylor searched § 87(2)(b) and § 87(2)(b)

Allegation F – Abuse of Authority: Police Officer Christophe Schlitt searched § 87(2)(b) and § 87(2)(b)

It is undisputed that Sgt. Taylor and PO Schlitt stopped, frisked and searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) § 87(2)(b) and § 87(2)(b) both went to eat at a pizza parlor located at the intersection of Avenue R and Nostrand Avenue in Brooklyn. They then walked together to Marine Park, adjacent to Junior High School 278 to play basketball. They found no other people with whom to play and so walked to the exit of the park on Stuart Street and Avenue S. At the time of the incident, § 87(2)(b) was a § 87(2)(b) black male, § 87(2)(b). § 87(2)(b) was a § 87(2)(b) black male who was § 87(2)(b). According to § 87(2)(b) he was wearing a black t-shirt and was carrying a black backpack and § 87(2)(b) was wearing a red t-shirt and carrying a black backpack. According to § 87(2)(b) he was wearing a red shirt and black basketball shorts, and § 87(2)(b) was wearing a white shirt and carrying a black and white backpack. Sgt. Taylor and PO Schlitt pulled up in front of them and Sgt. Taylor exited the vehicle and instructed them to drop their backpacks. They complied and their backpacks were placed on the hood of the patrol car. § 87(2)(b) and § 87(2)(b) were informed that there had been a robbery at a pharmacy and that they were stopped in regards to the robbery. They were told that they fit the description of the suspects. Sgt. Taylor and PO Schlitt then frisked their legs, pants pockets and torsos. Neither § 87(2)(b) nor § 87(2)(b) saw the other being frisked, but they each described their own frisks in a similar fashion. The officers also searched inside § 87(2)(b) and § 87(2)(b)'s backpacks, finding no contraband. They estimated they were released after approximately 20 to 30 minutes.

According to the Stop, Question and Frisk reports generated by PO Schlitt, the stops occurred at 3:30 p.m. and lasted 15 minutes. The names of individuals stopped are redacted from these reports. The reason for the stop in one report was “Fits Description” and “Other - Concealing or

Possession a Weapon and Proximity [sic] to the crime scene.” It listed the reason for the frisk as “Violent Crime Suspected.” And the reason for the search as, “Other - Consent to search.” **(Board Review 3)** The other report listed the reason for the stop as “Other - To Crime Scene.” The reason for the frisk was listed as “Violent Crime Suspected.” And the reason for the search as, “Other - Consent to search.” **(Board Review 4)** Both reports were reviewed by Sgt. Taylor.

PO Schlitt had no recollection of this incident during his CCRB interview despite being presented with the Stop, Question and Frisk reports he prepared. In his memo book **(Board Review 5)**, PO Schlitt noted that two males were stopped at Stuart Street and Avenue S. He noted § 87(2)(b) as wearing a red shirt, black shorts and carrying a black backpack. He noted § 87(2)(b) was wearing a white shirt, white socks and carrying a black backpack. Sgt. Taylor recalled that he responded to a report of a robbery and stated that he stopped § 87(2)(b) and § 87(2)(b) based on their resemblance to the description of the robbery suspects. Sgt. Taylor stated that both § 87(2)(b) and § 87(2)(b) were frisked due to the violent nature of the suspected crime, and that he participated in conducting the frisks. However, he could recall whether the frisked only one or both of them. During his CCRB interview, he could not recall what the descriptions of the suspects were. Sgt. Taylor also could not recall whether § 87(2)(b) or § 87(2)(b) were searched, despite being presented with the stop and frisk reports. He recalled that the robbery victim was brought to the location and stated that § 87(2)(b) and § 87(2)(b) were not the suspects, but couldn’t recall any other details of what occurred during the stop of § 87(2)(b) and § 87(2)(b). Sgt. Taylor’s memo book entries did not contain any description of the suspects or of § 87(2)(b) and § 87(2)(b).

During the 911 call to report the robbery, “§ 87(2)(b) the pharmacist at § 87(2)(b), located at § 87(2)(b) stated that the robbery had just occurred. He initially stated that the robbery was committed by three black males, and could not describe any of the suspects stating, “I can’t even describe them.” § 87(2)(b) stated that one of them covered his face with a white t-shirt. He also stated that one displayed a large black handgun and one carried the stolen money and medication in a black backpack **(Board Review 6)**. According to the recording of the radio communications **(Board Review 7)**, after the dispatcher reported the call, responding officers requested multiple times for the dispatcher to call § 87(2)(b) back and obtain more detailed descriptions. Upon calling back, the dispatcher asked § 87(2)(b) for further description of the suspects. He responded, “All I know is that there were three black gentlemen. One had a black bag. One had a gun.” He added that the gun was black. The dispatcher then provided this information over the radio and repeated it several times. At one point Sgt. Taylor could be heard saying over the radio, “We’re looking for three male blacks. They went eastbound on § 87(2)(b) § 87(2)(b). One male black is wearing a white t-shirt. That’s all we have.” Approximately 11 minutes after the initial radio run, an unidentified male officer asked Sgt. Taylor over the radio for clarification on the description and Sgt. Taylor responded, “I have no more description.” The other officer then asked, “Do we have an age? A height? Dark skin? Light skin?” Sgt. Taylor did not reply. Approximately 14 minutes after the initial radio run, Sgt. Taylor reported that he had stopped two males at Stuart Street and Avenue S, which is where § 87(2)(b) and § 87(2)(b) were stopped. § 87(2)(b) **(Board Review 8)**.

In *Carrow v. City of New York*, 2010 U.S. Dist. LEXIS 25702, 2010 WL 1009996, the plaintiff argued that he was unlawfully stopped by police officers because the officers lacked sufficient reason to stop him. He argued that the physical description of a suspect broadcast over the radio was too general and not sufficient to render a stop reasonable. The court found that the physical description provided over the radio in conjunction with further information provided by the crime victim in person must be considered together under the totality of the circumstances. The description given to the officers both over the radio and in-person included; the race, gender, approximate age, approximate height, a description of the suspect's nose, color and brand of jacket, color of pants and that the suspect wore a ski-mask. The court found that the plaintiff's resemblance to such a description rendered the stop reasonable (**Board Review 9**).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, D, E and F** be **Substantiated**.

Squad: 10

Investigator:	_____	<u>Simon Wang</u>	<u>10/12/17</u>
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date